

Clarification is needed: petitioner now requests only relief under §§ 1a & 7a—determination of decedent's separate and community interests passing to survivor. Petitioner does not pray for any confirmation of his community interest (see unused §§ 1b & 7b). Attachment 7a must include only decedent's community property and may not include any property of survivor; as filed, Attachment 7a refers only to "decedent's interest" without identifying any separate or community interest in the listed property. Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

20. S-PR-0014147 In Re the Estate of Williams, Roy Bobby

Missing relationship(s) of persons listed in § 9 to decedent.

Attachment 7 is insufficient to establish that the subject property is community property. Petitioner admits the property was obtained as a separate asset and record title remains in decedent individually. The form of title presumption of Evid.C. § 662 controls over any community presumption of Fam.C. § 706, although both are rebuttable. In re Brace (2020) 9 Cal.5th 903, 934; Estate of Wall (2021) 68 Cal.App.5th 168. Here, petitioner admits the form of title is decedent's separate property. Petitioner offers insufficient evidence of transmutation of title: separate property may be pledged as collateral for a community indebtedness without any transmutation. Petitioner implies the marital community should be entitled to Moore-Marsden credits, but offers no proposed calculation of such credits.

Attachment 7a fails to describe only decedent's separate and community interests which petitioner claims are property passing to her. There is no request for the companion relief of confirming petitioner's community property interests (see unused §§ 1b & 7b). Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

21. S-PR-0014148 In Re the Estate of Mathew, Gary Michael

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing publication of notice of hearing.

Note: missing signed Duties form (D147). Clerk cannot issue letters until signed Duties form is filed.

22. S-PR-0014149 In Re the Estate of Osborne, Elizabeth

Calendar notes are not yet available for this matter. Please check back for updated notes.